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Case Number: 26STCV00211 Hearing Date: August 12, 2026 Dept: 509

Brian Rattliff v. Lyft, Inc., et al.

MOTION TO COMPEL ARBITRATION

MOVING PARTY: Defendant Lyft Inc.

RESPONDING PARTY(S): Plaintiff Brian Rattliff

STATEMENT OF MATERIAL FACTS AND/OR PROCEEDINGS:

Plaintiff Brian Rattliff (Plaintiff) hired defendant Abbas Jammal (Jammal) for motor vehicle transportation on the Lyft Inc. (Lyft) app. While Plaintiff was a passenger in Jammal's motor vehicle, Jammal rear-ended another vehicle. Plaintiff now brings causes of action for: (1) negligence; (2) negligence per se; (3) vicarious liability; (4) negligent hiring, retention, and supervision; and (5) carrier of persons for reward.

Lyft now moves to compel the matter to arbitration. Plaintiff opposed.

TENTATIVE RULING:

Lyft's Motion to Compel Arbitration is GRANTED. The action is stayed pending the results of the arbitration.

A Status Review/OSC re: Dismissal is set for August 12, 2027, at 8:30 a.m.

Moving Party is ordered to give notice.

DISCUSSION:

Motion to Compel Arbitration

1. Legal Standard

"[T]he petitioner bears the burden of proving the existence of a valid arbitration agreement by the preponderance of the evidence" (Giuliano v. Inland Empire Personnel, Inc. (2007) 149 Cal.App.4th 1276, 1284). "In determining whether an arbitration agreement applies to a specific dispute, the court may examine only the agreement itself and the complaint filed by the party refusing arbitration [citation]. The court should attempt to give effect to the parties' intentions, in light of the usual and ordinary meaning of the contractual language and the circumstances under which the agreement was made." (Weeks v. Crow (1980) 113 Cal.App.3d 350, 353.) "Doubts as to whether an arbitration clause applies to a particular dispute are to be resolved in favor of sending the parties to arbitration. The court should order them to arbitrate unless it is clear that the arbitration clause cannot be interpreted to cover the dispute." (California Correctional Peace Officers Ass'n v. State (2006) 142 Cal.App.4th 198, 205.)

"[A] party opposing the petition bears the burden of proving by a preponderance of the evidence any fact necessary to its defense. [Citation.] In these summary proceedings, the trial court sits as a trier of fact, weighing all the affidavits, declarations, and other documentary evidence, as well as oral testimony received at the court's discretion, to reach a final determination." (Giuliano v. Inland Empire Personnel, Inc. (2007) 149 Cal.App.4th 1276, 1284.)

"If a court of competent jurisdiction, whether in this State or not, has ordered arbitration of a controversy which is an issue involved in an action or proceeding pending before a court of this State, the court in which such action or proceeding is pending shall, upon motion of a party to such action or proceeding, stay the action or proceeding until an arbitration is had in accordance with the order to arbitrate or until such earlier time as the court specifies. . . ." (Code Civ. Pro. §1281.4.)

2. Analysis

California has a strong public policy in favor of arbitration as an expeditious and cost-effective way of resolving disputes. "Even so, parties can only be compelled to arbitrate when they have agreed to do so." (Avila v. S. California Specialty Care, Inc. (2018) 20 Cal. App. 5th 835, 843.) "The party seeking to compel arbitration bears the burden of proving the existence of a valid arbitration agreement." (Ibid.)

An arbitration agreement is a contractual agreement. "General contract law principles include that '[t]he basic goal of contract interpretation is to give effect to the parties' mutual intent at the time of contracting. [Citations.] ... The words of a contract are to be understood in their ordinary and popular sense." [Citations.] (Garcia v. Expert Staffing W., 73 Cal. App. 5th 408, 412–13.)

A. Delegation Clause

"Parties to an arbitration agreement may agree to delegate to the arbitrator, instead of a court, questions regarding the enforceability of the agreement. [Citation.] They 'can agree to arbitrate almost any dispute—even a dispute over whether the underlying dispute is subject to arbitration.'" (Tiri v. Lucky Chances, Inc. (2014) 226 Cal.App.4th 231, 241.) "There are two prerequisites for a delegation clause to be effective. First, the language of the clause must be clear and unmistakable. [Citation.] Second, the delegation must not be revocable under state contract defenses such as fraud, duress, or unconscionability." (Id. at p. 242.)

Here, the Agreement contains a clear and unmistakable delegation clause. "All disputes concerning the arbitrability of a Claim (including disputes about the scope, applicability, enforceability, revocability or validity of the Arbitration Agreement) shall be decided by the arbitrator, except as expressly provided below." (Sniegowski Decl., ¶ 7, Exhibit 7, p. 23.) This is a clear and unmistakable delegation clause. Further, as discussed below in detail, this Agreement is not voidable as a result of fraud, duress, or unconscionability.

Therefore, this action against Lyft must be initiated in arbitration. Whether the action continues in arbitration is left to the discretion of the arbitrator.

Further, even if the delegation clause was inapplicable or insufficient, the Court would find a valid and binding arbitration agreement between the parties.

B. Existence of an Arbitration Agreement

The party moving to compel arbitration must establish the existence of a written arbitration agreement between the parties. (Code Civ. Proc., § 1281.2.) The moving party can meet this initial burden by attaching to the petition a copy of the arbitration agreement purporting to bear the respondent's signature. (*Bannister v. Marinidence Opco, LLC* (2021) 64 Cal.App.5th 541, 541-543.) Alternatively, the moving party can meet its initial burden by setting forth the agreement's provisions in the motion. (See *Condee v. Longwood Management Corp.* (2001) 88 Cal.App.4th 215, 219; see also Cal. Rules of Court, rule 3.1330.)

Here, Lyft has met their initial burden to establish the existence of a written arbitration agreement between the parties. The Declaration of Alex Sniegowski provides the Terms of Service that Plaintiff agreed to which includes a valid arbitration provision applicable to this current action. Plaintiff has agreed to Lyft's terms of service, each containing an arbitration provision, six times. (Sniegowski Decl., ¶12.)

The Terms of Service contain an arbitration provision on its first page, which is further elaborated later in the Terms of Service. The first page arbitration provision states:

PLEASE BE ADVISED: THIS AGREEMENT CONTAINS PROVISIONS THAT GOVERN HOW CLAIMS BETWEEN YOU AND LYFT CAN BE BROUGHT (SEE SECTION 17 BELOW). THESE PROVISIONS WILL, WITH LIMITED EXCEPTION, REQUIRE YOU TO: (1) WAIVE YOUR RIGHT TO A JURY TRIAL, AND (2) SUBMIT CLAIMS YOU HAVE AGAINST LYFT TO BINDING AND FINAL ARBITRATION ON AN INDIVIDUAL BASIS, NOT AS A PLAINTIFF OR CLASS MEMBER IN ANY CLASS, GROUP OR REPRESENTATIVE ACTION OR PROCEEDING.

(Sniegowski Decl., ¶ 7, Exhibit 7, p. 1.)

Except as expressly provided below, ALL DISPUTES AND CLAIMS BETWEEN US (EACH A "CLAIM" AND COLLECTIVELY, "CLAIMS") SHALL BE EXCLUSIVELY RESOLVED BY BINDING ARBITRATION. These Claims include, but are not limited to, any dispute, claim or controversy, whether based on past, present, or future events, arising out of or relating to: this Agreement and prior versions thereof (including the breach, termination, enforcement, interpretation or validity thereof), the Lyft Platform, the Rideshare Services, the Lyft Services, Lyft promotions, gift card, referrals or loyalty programs, the Lyft Tablet, any other goods or services made available through the Lyft Platform by Lyft or a third-party provider, your relationship with Lyft . . .

(Sniegowski Decl., ¶ 7, Exhibit 7, p. 23.)

"Plaintiff affirmatively accepted Lyft's Terms of Service within the Lyft App on six (6) separate dates, both before and after the subject accident." (Sniegowski Decl., ¶ 7, Exh. 1.) Therefore, Lyft has put forth a signed arbitration agreement that generally covers the claims here.

In opposition, Plaintiff argues as to the sufficiency of the authentication of the documents presented. However, Plaintiff provides no declaration attesting that Plaintiff did not agree to the Lyft Terms of Service, including the arbitration provisions, presented by Lyft. There is no evidence to rebut Lyft's evidence that Plaintiff agreed to Lyft's Terms of Service and the arbitration provision within. Therefore, the arbitration agreement is valid and enforceable.

C. Defenses to Enforcement

As previously stated *supra*, it is this Court's expressed finding that the Arbitrator shall decide whether the arbitration agreement is enforceable or not, since that task has been expressly delegated to him or her. This Court's role in this case was merely to determine whether or not there was an arbitration agreement between the parties, which it has been determined that there is such an agreement to arbitrate this dispute.

That being said, the following analysis is provided in the alternative, in the event that somehow this task was also supposed to be adjudicated by this Court. [FN 1]

Plaintiff argues the Agreement should be disregarded based on principles of unconscionability. Unconscionability has "both a procedural and a substantive element, the former focusing on oppression or surprise due to unequal bargaining power, the latter on overly harsh or one-sided results. (*Sanchez v. Valencia Holding Company, LLC* (2015) 61 Cal.4th 899, 910.) Under California law, an arbitration agreement must be in some measure both procedurally and substantively unconscionable in order for the agreement to be unenforceable. (*Armendariz v. Foundation Health Psychcare Services, Inc.* (2000) 24 Cal.4th 83, 114 (*Armendariz*); *De La Torre v. CashCall, Inc.* (2018) 5 Cal.5th 966, 982.) "But they need not be present in the same degree. . . . [T]he more substantively oppressive the contract term, the less evidence of procedural unconscionability is required to come to the conclusion that the term is unenforceable, and vice versa." (*Armendariz, supra*, 24 Cal.4th at p. 114.)

a. Procedural Unconscionability

First, Plaintiff argues the agreement is procedurally unconscionable because it was a contract of adhesion—it was offered on "take-it-or-leave-it-basis" as a condition to hail a Lyft taxi and he had no ability to negotiate its terms. Plaintiff alleges that this contract of adhesion should invalidate the Agreement. "The term [contract of adhesion] signifies a standardized contract, which, imposed and drafted by the party of superior bargaining strength, relegates to the subscribing party only the opportunity to adhere to the contract or reject it." [Citation]. (*Armendariz, supra*, 24 Cal.4th at p. 113.)

Here, the Court agrees with Plaintiff that the dynamic here represents a classic contract of adhesion, but only to the degree that is typical in modern digital transactions. Therefore, the "take it or leave it" nature of the agreement is sufficient to establish "some degree of procedural unconscionability." (*Sanchez v. Valencia Holding Co., LLC* (2015) 61 Cal.4th 899, 915). This means the substantive terms of the agreement must be scrutinized to ensure they are not manifestly unfair or one-sided. (*Ibid.*)

b. Substantive Unconscionability

Plaintiff also contends the Agreement is substantively unconscionable. "'Substantive unconscionability' focuses on the terms of the agreement and whether those terms are 'so one-sided as to 'shock the conscience.'" (*Kinney v. United HealthCare Services, Inc.* (1999) 70 Cal.App.4th 1322, 1330.)

"In assessing substantive unconscionability, the paramount consideration is mutuality." (*Pinela v. Neiman Marcus Group, Inc.* (2015) 238 Cal.App.4th 227, 241, internal quotes and citations omitted.) "A contractual provision is not substantively unconscionable simply because it provides one side a greater benefit. The party with the greater bargaining power is permitted to require contractual provisions that provide it with additional protections if there is a legitimate commercial need for those protections, but the stronger party may not require additional protections merely to maximize its advantage over the weaker party. 'As has been recognized 'unconscionability turns not only on a 'one-sided' result, but also on an absence of 'justification' for it.'" (*Carbajal v. CWPSC, Inc.* (2016) 245 Cal.App.4th 227, 248, internal citations omitted.)

Plaintiff argues, "[w]hile facially mutual, they exempt from arbitration only discrete categories of claims that do not meaningfully burden Lyft, while sweeping in the broadest category of claims a consumer is likely to bring – personal-injury

tort claims of exactly the type at issue here.” (Opp. at p. 10:24-27.)

However, these provisions are not so one-sided as to shock the conscious of the Court. While these provisions certainly favor the Lyft, they do not appear to be unjustifiable constraints designed to maximize its advantage over the weaker party. The terms leave a minimal finding of substantive unconscionability.

This, therefore, leaves us with only a minimal finding of both procedural and substantive conscionability. This is not enough under the sliding scale approach to invalidate the agreement as a whole.

c. Waiver

Finally, Plaintiff briefly addresses the issue of waiver alleging “Lyft waited more than six months after Plaintiff’s operative complaint” to file this instant motion. (Opp. at p. 11:18-19.) However, waiver occurs “when the party seeking to enforce a known contractual right has intentionally relinquished or abandoned that right.” (Quach v. California Commerce Club, Inc. (2024) 16 Cal.5th 562, 569.) “To establish waiver under generally applicable contract law, the party opposing enforcement of a contractual agreement must prove by clear and convincing evidence that the waiving party knew of the contractual right and intentionally relinquished or abandoned it.” (Id. at p. 584.) “The waiver inquiry is exclusively focused on the waiving party’s words or conduct; neither the effect of that conduct on the party seeking to avoid enforcement of the contractual right nor that party’s subjective evaluation of the waiving party’s intent is relevant.” (Id. at p. 585.) This brief delay, plus the significant evidence of Lyft’s meet and confer efforts during this time, does not rise to waiver. There is no evidence of an abandonment of Lyft’s right to arbitration from this delay alone.

Accordingly, Defendants’ Motion to Compel Arbitration is GRANTED. The action is stayed pending the results of the arbitration.

IT IS SO ORDERED.

Dated: August 12, 2026 _____

Randolph M. Hammock

Judge of the Superior Court

FN 1 - To be even more clear, the following findings are not binding on the Arbitrator is he/she also addresses these enforceability issues, as delegated to him/her.

Any party may submit on the tentative ruling by contacting the courtroom via email at by no later than 4:00 p.m. the day before the hearing. All interested parties must be copied on the email. It should be noted that if you submit on a tentative ruling the court will still conduct a hearing if any party appears. By submitting on the tentative you have, in essence, waived your right to be present at the hearing, and you should be aware that the court may not adopt the tentative, and may issue an order which modifies the tentative ruling in whole or in part.